

FW: Cory Shepherd - Application for reinstatement

From: Zach Joubert zjoubert@stonegroup.com.au
To: Cory Shepherd coryshepherd1@hotmail.com
Cc: Berren Hamilton
bhamilton@stonegroup.com.au, Felicity Grice
fgrice@stonegroup.com.au
Sent: Wednesday 11 December 2024 at 15:06

Dear Cory,

Below is a further email from Lauren – please consider.

Kind regards,

ZACH JOUBERT | Special Counsel

 **Stone Group Lawyers**
A Suite 31106, 9 Lawson Street,
Southport, QLD 4215
P PO Box 145, Southport, QLD 4215
T [\(07\) 5635 0180](tel:(07)56350180)
E zjoubert@stonegroup.com.au



[Website](#) | [Disclaimer](#)



Individual liability limited by a scheme approved under professional standards legislation.

From: Lauren Griffin <Lauren.Griffin2@health.qld.gov.au>
Sent: Wednesday, 11 December 2024 3:05 PM
To: Zach Joubert <zjoubert@stonegroup.com.au>
Cc: Berren Hamilton <bhamilton@stonegroup.com.au>;
Felicity Grice <fgrice@stonegroup.com.au>
Subject: RE: Cory Shepherd - Application for reinstatement

Good afternoon,

I do apologise, I was mistaken – he would have first been eligible in mid-2023 once he had been at AO3(4) for 12 months if he had submitted a relevant qualification. We would still require appropriate evidence of him holding such a qualification in order to agree to that within this process. [Here is a link to the relevant policy](#) if that assists?

Regards

Lauren

Lauren Griffin
Director
Employment Relations
Metro South Health
Building 23, 2404 Logan Road, Eight Mile Plains 4113
[Metro South Health](#)

e. Lauren.Griffin2@health.qld.gov.au | [Chat on Teams](#)
e. MSHR.EmploymentRelations@health.qld.gov.au
p. 2100 9777



Metro South Health recognises and pays respect to the traditional custodians of the land and waters – the Yugambeh, Quandamooka, Jaggera, Ugarapul, Turrbal, and Mununjali peoples – and to Elders, past, present and emerging.

From: Lauren Griffin

Sent: Wednesday, December 11, 2024 12:46 PM

To: Zach Joubert <zjoubert@stonegroup.com.au>

Cc: Berren Hamilton <bhamilton@stonegroup.com.au>;

Felicity Grice <fgrice@stonegroup.com.au>

Subject: RE: Cory Shepherd - Application for reinstatement

Hi Zach,

Without prejudice

I'm still going to come back to you by end of week, but in relation to the targeted training allowance, our records don't indicate that Cory has ever applied for that allowance or provided the Health Service with documentation which suggests he is entitled to receive it. If that is going to be wrapped up into this matter, we'd need to see evidence that he holds a qualification eligible for the allowance. Cory also doesn't appear to have met the requirements of cl2.11.2(b) and (c) yet. I am just wanting to understand if we have a different view as to his eligibility for the allowance?

Regards

Lauren

Lauren Griffin

Director

Employment Relations

Metro South Health

Building 23, 2404 Logan Road, Eight Mile Plains 4113

[Metro South Health](#)

e. Lauren.Griffin2@health.qld.gov.au | [Chat on Teams](#)

e. MSHR.EmploymentRelations@health.qld.gov.au

p. 2100 9777



Metro South Health recognises and pays respect to the traditional custodians of the land and waters – the Yugambeh, Quandamooka, Jaggera, Ugarapul, Turrbal, and Mununjali peoples – and to Elders, past, present and emerging.

From: Zach Joubert <zjoubert@stonegroup.com.au>

Sent: Tuesday, December 10, 2024 2:02 PM

To: Lauren Griffin <Lauren.Griffin2@health.qld.gov.au>

Cc: Berren Hamilton <bhamilton@stonegroup.com.au>;

Felicity Grice <fgrice@stonegroup.com.au>

Subject: RE: Cory Shepherd - Application for reinstatement

**This email originated from outside Queensland Health.
DO NOT click on any links or open attachments unless
you recognise the sender and know the content is
safe.**

Hi Lauren

Without prejudice

Public holidays

Payments were missed for the following public holidays:

1. 5 April 2021
2. 16 April 2022

Higher education

Yes, thank you for pointing out that reference should be made to the Targeted Training Allowance.

Historical underpayments

You are correct to point out that the underpayments are not a result of the dismissal but exist independently. However, clause 7 of the proposed Deed appears to release Queensland Health from such claims relating to underpayments, and our client prefers to settle all claims between the parties.

Kind regards,

ZACH JOUBERT | Special Counsel



Stone Group Lawyers

A Suite 31106, 9 Lawson Street,
Southport, QLD 4215

P PO Box 145, Southport, QLD 4215

T [\(07\) 5635 0180](tel:(07)56350180)

E zjoubert@stonegroup.com.au



[Website](#) | [Disclaimer](#)



From: Lauren Griffin <Lauren.Griffin2@health.qld.gov.au>
Sent: Monday, 9 December 2024 5:18 PM
To: Zach Joubert <zjoubert@stonegroup.com.au>
Cc: Berren Hamilton <bhamilton@stonegroup.com.au>;
Felicity Grice <fgrice@stonegroup.com.au>
Subject: RE: Cory Shepherd - Application for reinstatement

Hi Zach

Apologies-

Further to my previous – which public holiday/s are you saying were missed?

Regards

Lauren

Lauren Griffin
Director
Employment Relations
Metro South Health
Building 23, 2404 Logan Road, Eight Mile Plains 4113
[Metro South Health](https://www.metro-south.health.qld.gov.au/)

e. Lauren.Griffin2@health.qld.gov.au | [Chat on Teams](#)
e. MSHR.EmploymentRelations@health.qld.gov.au
p. 2100 9777



Metro South Health recognises and pays respect to the traditional custodians of the land and waters – the Yugambah, Quandamooka, Jaggera, Ugarapul, Turrbal, and Mununjali peoples – and to Elders, past, present and emerging.

From: Lauren Griffin
Sent: Monday, December 9, 2024 4:57 PM
To: Zach Joubert <zjoubert@stonegroup.com.au>
Cc: Berren Hamilton <bhamilton@stonegroup.com.au>;
Felicity Grice <fgrice@stonegroup.com.au>
Subject: RE: Cory Shepherd - Application for reinstatement

Hi Zach,

Without prejudice

Thanks for sending that through. I'll be able to respond before the end of week.

Can I just ask you to verify a few things:

1. The higher education incentive allowance isn't applied to employees in the Administrative stream – only Health Practitioners and Clinical Assistants. Do you think this should instead be in reference to the Targeted Training Allowance (provided for in cl 2.11 of the *Queensland Public Health Sector Certified Agreement (No.11) 2022*)?
2. Are the following amounts historical underpayments he has previously or separately identified, or is it your view that they were caused by the dismissal?
 - a. - \$5,512.66 in estimated Higher Education allowance that Cory was entitled to from 2022 to date.
 - b. - \$377.19 in Fatigue Pay relating to 18 March 2024
 - c. - \$1,237.50 in respect of missed public holiday payments.

Regards

Lauren

Lauren Griffin
Director
Employment Relations
Metro South Health
Building 23, 2404 Logan Road, Eight Mile Plains 4113
[Metro South Health](#)

e. Lauren.Griffin2@health.qld.gov.au | [Chat on Teams](#)
e. MSHR.EmploymentRelations@health.qld.gov.au
p. 2100 9777



Metro South Health recognises and pays respect to the traditional custodians of the land and waters – the Yugambeh, Quandamooka, Jaggera, Ugarapul, Turrbal, and Mununjali peoples – and to Elders, past, present and emerging.

From: Zach Joubert <zjoubert@stonegroup.com.au>
Sent: Monday, December 9, 2024 4:39 PM
To: Lauren Griffin <Lauren.Griffin2@health.qld.gov.au>
Cc: Berren Hamilton <bhamilton@stonegroup.com.au>;
Felicity Grice <fgrice@stonegroup.com.au>
Subject: RE: Cory Shepherd - Application for reinstatement

**This email originated from outside Queensland Health.
DO NOT click on any links or open attachments unless**

you recognise the sender and know the content is safe.

Dear Lauren,

Without prejudice

In response to your queries, our client is ready to return to work as soon as the matter settles.

Although not a requirement, he has expressed a preference for working at QE2 or Redlands.

As to the substance of your offer, I **attach** a revised Deed with changes tracked.

The changes fall under the following categories:

Pay during absence

Although Cory would agree to that the period from 20 September 2024 6 October 2024 being characterised as unpaid leave, and that his payouts in lieu of leave be paid back, he should be entitled to payment from 7 October 2024 as that is the date from which he would have resumed working had he not been dismissed.

Payments

Cory lost the following amounts as a result of the dismissal, and to be put into the same position that he would have enjoyed had he not been dismissed, he requires the following payments:

- \$287.72 in daily earnings plus 12.5% superannuation from the date of 7 October 2024 being the date upon which the Applicant would have resumed work had he not been dismissed (as described under the previous heading).
- \$5,512.66 in estimated Higher Education allowance that Cory was entitled to from 2022 to date.
- \$377.19 in Fatigue Pay relating to 18 March 2024/
- \$1,237.50 in respect of missed public holiday payments.
- \$5,000 in legal fees (up to this stage).

Further particularity to these calculations can be provided if needed.

As mentioned, these could be partly set off against reimbursements for payments received in lieu of leave.

Outstanding matters

Finally, we are concerned about this clause:

The Health Service reserves the right to deal with the outstanding matters of the Applicant's absenteeism and communication with the Health Service regarding his absences from the workplace.

Cory's employment was terminated due to alleged absenteeism. Having Cory release MSH from all claims while MSH retains its claims or grievances against him in relation to the alleged absenteeism suggests that he could be reinstated only to be terminated again on the same grounds. It is usual in a Deed of Release for both parties to release each other of all claims. We would therefore propose to remove this clause.

We look forward to your response.

Kind regards,

ZACH JOUBERT | Special Counsel

Stone Group Lawyers



A Suite 31106, 9 Lawson Street,
Southport, QLD 4215
P PO Box 145, Southport, QLD 4215
T (07) 5635 0180
E zjoubert@stonegroup.com.au



[Website](#) | [Disclaimer](#)



From: Lauren Griffin <Lauren.Griffin2@health.qld.gov.au>
Sent: Tuesday, 3 December 2024 1:29 PM
To: Zach Joubert <zjoubert@stonegroup.com.au>
Cc: Berren Hamilton <bhamilton@stonegroup.com.au>;
Felicity Grice <fgrice@stonegroup.com.au>
Subject: RE: Cory Shepherd - Application for reinstatement

Hi Zach

Without prejudice

Thanks for your patience while we put this together.

I have **attached** a draft deed which reflects our previous discussions – for your review. I am waiting on final confirmation from Payroll as to the leave balances paid out and sick leave balances current as at separation, and I anticipate I will be able to confirm that with you tomorrow. Please advise of any requested amendments to the attached or if you would like to discuss further.

In terms of the reinstatement, are you able to advise at all of whether Mr Shepherd will be well enough to return to his substantive role and hours immediately, or if there is further absence or medical restriction that we should account for?

Regards

Lauren

Lauren Griffin
Director
Employment Relations
Metro South Health
Building 23, 2404 Logan Road, Eight Mile Plains 4113
[Metro South Health](https://www.metro-south.health.qld.gov.au)

e. Lauren.Griffin2@health.qld.gov.au | [Chat on Teams](#)
e. MSHR.EmploymentRelations@health.qld.gov.au
p. 2100 9777



Metro South Health recognises and pays respect to the traditional custodians of the land and waters – the Yugambeh, Quandamooka, Jaggera, Ugarapul, Turrbal, and Mununjali peoples – and to Elders, past, present and emerging.

From: Zach Joubert <zjoubert@stonegroup.com.au>
Sent: Friday, November 29, 2024 2:02 PM
To: Lauren Griffin <Lauren.Griffin2@health.qld.gov.au>
Cc: Berren Hamilton <bhamilton@stonegroup.com.au>;

Felicity Grice <fgrice@stonegroup.com.au>

Subject: RE: Cory Shepherd - Application for reinstatement

**This email originated from outside Queensland Health.
DO NOT click on any links or open attachments unless
you recognise the sender and know the content is
safe.**

Thank you Lauren, and the same to you.

Kind regards,

ZACH JOUBERT | Special Counsel

Stone Group Lawyers



A Suite 31106, 9 Lawson Street,
Southport, QLD 4215
P PO Box 145, Southport, QLD 4215
T [\(07\) 5635 0180](tel:(07)56350180)
E zjoubert@stonegroup.com.au



[Website](#) | [Disclaimer](#)



Individual liability limited by a scheme approved under professional standards legislation.

From: Lauren Griffin <Lauren.Griffin2@health.qld.gov.au>

Sent: Friday, 29 November 2024 9:26 AM

To: Zach Joubert <zjoubert@stonegroup.com.au>

Cc: Berren Hamilton <bhamilton@stonegroup.com.au>;

Felicity Grice <fgrice@stonegroup.com.au>

Subject: RE: Cory Shepherd - Application for reinstatement

Thanks Zach

I'll have my team get onto a draft deed that I'll send to you early next week to assist with moving discussions further along.

Hope you have a nice weekend.

Regards

Lauren

Lauren Griffin

Director

Employment Relations

Metro South Health

Building 23, 2404 Logan Road, Eight Mile Plains 4113

[Metro South Health](#)

e. Lauren.Griffin2@health.qld.gov.au | [Chat on Teams](#)

e. MSHR.EmploymentRelations@health.qld.gov.au

p. 2100 9777



Metro South Health recognises and pays respect to the traditional custodians of the land and waters – the Yugambeh, Quandamooka, Jaggera, Ugarapul, Turrbal, and Mununjali peoples – and to Elders, past, present and emerging.

From: Zach Joubert <zjoubert@stonegroup.com.au>

Sent: Thursday, November 28, 2024 3:34 PM

To: Lauren Griffin <Lauren.Griffin2@health.qld.gov.au>

Cc: Berren Hamilton <bhamilton@stonegroup.com.au>;

Felicity Grice <fgrice@stonegroup.com.au>

Subject: RE: Cory Shepherd - Application for reinstatement

**This email originated from outside Queensland Health.
DO NOT click on any links or open attachments unless
you recognise the sender and know the content is
safe.**

Without prejudice

Dear Lauren,

We have taken instructions from our client. We agree that a two-week adjournment may enable the parties to settle the matter.

Would you like to write to the Commission to request that the matter be vacated as per your email below?

We shall then revert on the substance of your settlement offer.

Kind regards,



Stone Group Lawyers

A Suite 31106, 9 Lawson Street,
Southport, QLD 4215
P PO Box 145, Southport, QLD 4215
T [\(07\) 5635 0180](tel:(07)56350180)
E zjoubert@stonegroup.com.au



[Website](#) | [Disclaimer](#)



Individual liability limited by a scheme approved under professional standards legislation.

From: Zach Joubert

Sent: Thursday, 28 November 2024 10:05 AM

To: Lauren Griffin <Lauren.Griffin2@health.qld.gov.au>

Cc: Berren Hamilton <bhamilton@stonegroup.com.au>;

Felicity Grice <fgrice@stonegroup.com.au>

Subject: RE: Cory Shepherd - Application for reinstatement

Dear Lauren,

Thank you for your phone call and your email.

I will discuss the offer with Mr Shepherd and get back to you shortly.

Kind regards,

ZACH JOUBERT | Special Counsel



Stone Group Lawyers

A Suite 31106, 9 Lawson Street,
Southport, QLD 4215
P PO Box 145, Southport, QLD 4215
T [\(07\) 5635 0180](tel:(07)56350180)
E zjoubert@stonegroup.com.au



Individual liability limited by a scheme approved under professional standards legislation.

From: Lauren Griffin <Lauren.Griffin2@health.qld.gov.au>

Sent: Thursday, 28 November 2024 8:54 AM

To: Zach Joubert <zjoubert@stonegroup.com.au>

Subject: Cory Shepherd - Application for reinstatement

Good morning Zach

WITHOUT PREJUDICE

Thanks for your time on the phone yesterday afternoon to discuss the matter of the reinstatement application of Mr Cory Shepherd. I have had the opportunity to seek instructions, and am writing to propose the following offer in a genuine attempt to settle the matter without the assistance of the Commission. If the below is an offer your client is minded to consider, I am hoping to obtain your consent to write to the Commission today to let them know that the parties are in genuine discussion to work towards settlement of the matter, and to request that tomorrow's listing is vacated and the matter held in abeyance for a period of two weeks to enable us to further progress our discussions, at the end of which the matter would either be discontinued or the parties would report back and request the assistance of the Commission.

The Health Service is willing to offer the following:

- Mr Shepherd will be reinstated to his former substantive position of Administrative Officer, Switchboard Services, Logan Hospital, with an effective date of 20 September 2024 (the date of his separation);
- Any leave balances paid out to Mr Shepherd on his separation will need to be reconciled, meaning that

the balances will be re-credited but this would have the effect of creating an overpayment that Mr Shepherd would need to pay back. If it assists, I can obtain further details for you as to amounts this would entail;

- Mr Shepherd will discontinue his application for reinstatement;
- For the purposes of clarity, there is no financial compensation, ex-gratia or similar payment on offer;
- The Health Service reserves its rights to deal with the outstanding matters of Mr Shepherd's absenteeism and communication with the Health Service about his absences from the workplace
- The above agreement to be entered into within a deed containing mutual release from the reinstatement application and mutual confidentiality

I am happy to discuss the matter further. My contact details are below. I am not available today between 12:30pm and 4pm, however outside of those times should be free to talk and of course always available by email.

If you have any questions, please let me know.

Regards

Lauren

Lauren Griffin
Director
Employment Relations
Metro South Health
Building 23, 2404 Logan Road, Eight Mile Plains 4113
[Metro South Health](#)

e. Lauren.Griffin2@health.qld.gov.au | [Chat on Teams](#)
e. MSHR.EmploymentRelations@health.qld.gov.au
p. 2100 9777



Metro South Health recognises and pays respect to the traditional custodians of the land and waters – the Yugambeh, Quandamooka, Jaggera, Ugarapul, Turrbal, and Mununjali peoples – and to Elders, past, present and emerging.

Disclaimer: This email and any attachments may contain legally privileged or confidential information and may be protected by copyright. You must not use or disclose them other than for the purposes for which they were supplied. The privilege or confidentiality attached to this message and attachments is not waived by reason of mistaken delivery to you. If you are not the intended recipient, you must not use, disclose, retain, forward or reproduce this message or any attachments. If you receive this message in error, please notify the sender by return email or telephone and destroy and delete all copies. Unless stated otherwise, this email represents only the views of the sender and not the views of the Queensland Government.

Queensland Health carries out monitoring, scanning and blocking of emails and attachments sent from or to addresses within Queensland Health for the purposes of operating, protecting, maintaining and ensuring appropriate use of its computer network.
